

23CMCV01412 23CMCV01412

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-30

Motion: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA [PROPOSED] ORDER RE: PLAINTIFF ROSE ML INC.'S MOTION FOR LEAVE TO CONDUCT ANTI-SLAPP DISCOVERY

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Case Number: 23CMCV01412 Hearing Date: June 30, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ROSE ML INC.,

Plaintiff,

vs.

AIR

DISTRIBUTION USA INC, et al.,

Defendants.

AIR

DISTRIBUTION USA INC.,

Cross-Complainant,

vs.

ROSE ML

INC., et al.,

Cross-Defendants.

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CASE NO: 23CMCV01412

[PROPOSED]

ORDER RE: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO COMPEL COMPLIANCE
WITH DEPOSITION SUBPOENA

[PROPOSED]

ORDER RE: PLAINTIFF ROSE ML INC.'S MOTION FOR LEAVE TO CONDUCT ANTI-SLAPP
DISCOVERY

Dept.

A

DATE:

June 30, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 08/30/2023

4th

AMENDED COMPLAINT FILED: 04/20/2026

CROSS-COMPLAINT

FILED: 09/19/2023

2nd

AMENDED CROSS-COMPLAINT FILED: 04/08/2026

TRIAL:

11/09/2026

1.

Background

This

is an action arising from an alleged breach of contract. The complaint alleges that defendants Air Distribution USA, Inc. and Robert Maneson (collectively, "Defendants") entered into an agreement with plaintiffs Rose ML, Inc. ("Rose") and Shisha Aroma, Inc. ("Shisha Aroma") (collectively, "Plaintiffs") not to sell certain products except to certain persons or under certain circumstances, and that Defendants breached this agreement.

Defendant

Air Distribution USA, Inc. ("Air Distribution") filed a cross-complaint against Rose and cross-defendants Sal Haddadin; Alfa Distribution, Inc. ("Alfa"); and Corona Wholesale, Inc. ("Corona") (collectively, "Cross-Defendants"). In the cross-complaint, Air Distribution alleges that Alfa and Corona are alter egos of Haddadin. Air Distribution alleges that Rose and Haddadin failed to pay for \$3,158,685.65 worth of tobacco products delivered to them by Air Distribution.

A. Motion to Compel Compliance with Discovery Subpoena

2.

Discussion

Air Distribution moves to

compel third party T & M Automotive, Inc.'s ("T&M") compliance with a deposition subpoena. Air Distribution contends that it noticed T&M's Person Most Knowledgeable ("PMK") deposition for April 15, 2026 but that T&M neither objected nor produced its PMK for deposition. In opposition,

Cross-Defendants do not contend that T&M's PMK's anticipated testimony is relevant to the claims and defenses asserted in Plaintiff's current operative pleading which is the subject of the pending anti-SLAPP motion.

Instead, Plaintiff contends that the motion should be denied because pursuant to Code of Civil Procedure § 425.16, subd. (g), all discovery proceedings in the action shall be stayed, including with respect to the operative cross-complaint and including T&M's PMK deposition, and that it would be unjust to require Plaintiff to seek leave to conduct discovery by way of noticed motion, but to permit Cross-Complainant leave to freely conduct discovery in connection with the claims asserted in the operative cross-complaint. Plaintiff further asserts that Code of Civ. Proc. § 425.16 is to be construed broadly, including subdivision (g), and that no published case provides that the stay on discovery does not extend to a cross-complaint where the anti-SLAPP motion is directed to Plaintiff's complaint.

After an anti-SLAPP motion has been filed in an action, discovery is automatically stayed as to that action. (Code Civ. Proc., § 425.16, subd. (g).) However, a cross-complaint is considered to be a separate action from the complaint. (Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc. (2021) 59 Cal.App.5th 995, 1004; Ohio Casualty Insurance Group v. Superior Court (1995) 30 Cal.App.4th 444, 448-449.)

The Legislature enacted section 425.16 to prevent and deter "lawsuits [referred to as SLAPP's] brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances." (Varian Med. Sys., Inc. v. Delfino (2005) 35 Cal. 4th 180, 192 ("Varian"), citing § 425.16, subd. (a).) Because these meritless lawsuits seek to deplete "the defendant's energy" and drain "his or her resources" the Legislature sought " 'to prevent SLAPPs by ending them early and without great cost to the SLAPP target' " (Id., citing Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, 1074, Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 65). Section 425.16 therefore establishes a procedure where the trial court evaluates the merits of the lawsuit using a summary judgment-like procedure at an early stage of the litigation. In doing so, section 425.16 seeks to limit the costs of

defending against such a lawsuit. (Id., citing Equilon Enterprises, at p. 65, [noting that the “short time frame for anti-SLAPP filings and hearings” and the “stay of discovery” pending resolution of the motion evidences the Legislature's intent to minimize the litigation costs of SLAPP targets].)

Plaintiff contends the

stay on appeal of an order made under § 425.16 supports its position. The court disagrees. Under Code of Civil Procedure § 916, “the

trial court is divested of” subject matter jurisdiction over any matter embraced in or affected by

the appeal during the pendency of that appeal.

(Varian,

supra, p. 196-197, emphasis added.) While it is true that § 916 stays all further

proceedings on the merits during the pendency of an appeal from the denial of

an anti-SLAPP motion, such an appeal does not stay proceedings relating to causes

of action not affected by the motion. (Varian, supra, 35 Cal. 4th at 194, fn. 8, emphasis added.) In Varian, defendants’ anti-SLAPP motions encompassed all

of plaintiffs’ causes of action. As

such, all of the matters on trial were embraced in and affected by defendants’

appeal from the denial of the motion, and the trial court lacked subject matter

jurisdiction “over these matters.” (Id., at 88-189, 200.)

Plaintiff’s reliance on Britts v. Superior Court (2006) is misplaced. At issue there was

whether the stay on “all discovery proceedings” under § 425.16, subd. (g)

extends to discovery motions generally, and specifically to discovery motions

filed prior to and pending when the anti-SLAPP motion was filed. The court concluded the stay on all discovery

proceedings includes discovery motions generally, and also includes discovery

motions pending when the anti-SLAPP motion was filed. There was no cross-complaint at issue in Britts, as is at issue here.

Our Supreme Court’s

holding in Varian

is consistent with this court’s interpretation of the stay on discovery

required by § 425.16 prior to appeal. Air Distribution’s notice of deposition,

provided as Exhibit 2 to the declaration of attorney Kina Wong, indicates that

the deposition was sought in connection with the allegations in the Second

Amended Cross-Complaint (“SACC”)), as the deposition topics concern transfers

of money or property between Cross-Defendants and T&M. Attorney Wong

declares that this issue arose because of discovery into Haddadin’s bank

records, which is at issue in the SACC but not in the Fourth Amended Complaint.

(Wong Decl. ¶¶ 2-3.)

Plaintiff does not

contend that T&M's PMK deposition relates to allegations in or defenses to matters alleged in the Fourth Amended Complaint which is the subject of the anti-SLAPP motion. Instead, Plaintiff merely objects on procedural grounds, contending that the court issued a stay on discovery on May 19, 2026, or determined that there was a "blanket" stay on discovery in effect as a result of the filing of the anti-SLAPP motion. However, the May 19, 2026 minute order on Motion to Deem Request for Admissions Admitted and on Ex Parte Application for order continuing hearing on pending discovery-related matters contains no such order either imposing a "blanket" stay or determining that a "blanket" stay is in effect precluding discovery on issues limited in scope to the claims asserted in the SACC. The court's order made no findings of fact or conclusions of law with respect to the scope of the automatic stay imposed pursuant to § 425.16 in the May 19, 2026 order. Instead, the order merely granted Rose ML's request to continue the hearing on the anti-SLAPP motion as well as the hearings on the then-pending discovery motions to dates after the new hearing on the anti-SLAPP motion.

This court's subsequent

order denying Air Distribution's June 12, 2026 Ex Parte Application for an Order Advancing the Hearing Date on Air Distribution and Maneson's Motion for Clarification Regarding Anti-SLAPP Discovery Stay itself indicates that the court had not decided the scope of any stay.

Though the court denied the application for lack of any emergency warranting ex parte relief, the denial was clearly not on the merits as the court indicated that arguments regarding the scope of any stay could be advanced in connection with the pending noticed discovery motions on calendar such as the instant motion.

Based on the foregoing, the

court finds that the discovery at issue in this motion is not automatically stayed by the filing of an anti-SLAPP motion as to the Fourth Amended Complaint, because it does not pertain to the Fourth Amended Complaint and instead relates only to the SACC.

Code

of Civil Procedure §1987.1 provides that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before

a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare."

On March 10, 2026, Air

Distribution noticed T&M's PMK deposition for April 15, 2026. (Wong Decl. ¶¶ 4-5.) T&M did not object to this deposition. (Wong Decl. ¶ 6.) T&M failed to produce its PMK for this deposition. (Wong Decl. ¶ 10.) The motion is reasonably made. Air Distribution is therefore entitled to an order compelling T&M's compliance with Air Distribution's deposition subpoena, pursuant to Code of Civil Procedure §1987.1, subd. (a).

Although Cross-Defendants

opposed the instant motion, they did not oppose the motion on substantive grounds. As the court has determined that the motion is procedurally proper, the court will grant Air Distribution's motion to compel T&M's compliance with Air Distribution's deposition subpoena.

3.

Conclusion

Based

on the foregoing, the court GRANTS Cross-Complainant Air Distribution USA, Inc.'s motion to compel third party T & M Automotive, Inc's compliance with Air Distribution's deposition subpoena. The deposition shall take place on _____, 2026, at _____ at the location specified in the notice of deposition. The deponent shall appear in person.

To

the extent this order resolves all issues raised in the pending Motion for Clarification of Anti-SLAPP Discovery Stay scheduled to be heard on July 17, 2026, the court once again urges moving party to consider withdrawal of that motion.

B. Motion for Leave to Conduct
Anti-SLAPP Discovery

2.

Discussion

Plaintiffs move for leave to conduct discovery irrespective of the anti-SLAPP stay on discovery on the complaint. Plaintiffs contend that, in order to adequately oppose Defendants' anti-SLAPP motion, they require discovery into the letter that Defendants sent to third-party customers, including which customers received the letter, other communications with those customers, and internal communications regarding drafting of the letter. In opposition, Defendants contend that Plaintiffs have failed to establish good cause for the requested discovery and that Plaintiffs have already had a substantial opportunity to obtain the requested documents through ordinary discovery procedures.

"All discovery proceedings in the action shall be stayed upon the filing of a notice of [an anti-SLAPP motion]. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision." (Code Civ. Proc., § 425.16, subd. (g).)

A plaintiff must show "good cause" before taking any discovery after the filing of an anti-SLAPP motion. (Code Civ. Proc., § 425.16, subd. (g).) "Good cause" requires a showing that the requested discovery is necessary for the plaintiff to oppose the anti-SLAPP motion and is narrowly tailored to that end. (*Balla v. Hall* (2021) 59 Cal.App.5th 652, 692.) Discovery that is not relevant to a legal defense being asserted by the defendant in the anti-SLAPP motion is not permitted. (*Blanchard v. DIRECTV, Inc.* (2004) 123 Cal.App.4th 903, 922.) A plaintiff must demonstrate the facts they expect to uncover in their discovery that would enable them to oppose the anti-SLAPP motion. (*Ibid.*)

Plaintiffs

request discovery into the letter that Defendants sent to Plaintiffs' customers; the identity of the customers who received the letter; all communications and related documents with those customers; internal communications about the letter and drafts of the letter; depositions of individuals with knowledge of the letter; and depositions of customers.

Plaintiffs cite to *Lafayette Morehouse, Inc. v. Chronicle Publishing Co.* (1995) 37 Cal.App.4th 855 for the proposition that “[i]f the plaintiff makes a timely and proper showing in response to the motion to strike, that a defendant or witness possesses evidence needed by plaintiff to establish a prima facie case, the plaintiff must be given the reasonable opportunity to obtain that evidence through discovery before the motion to strike is adjudicated.” (Id. at p. 868.)

Plaintiffs do not state what facts they anticipate obtaining from the requested discovery. Furthermore, Plaintiffs appear to already be in possession of the letter, as in their reply, they make arguments that the statements in the letter are not privileged while quoting the letter itself. Therefore, discovery into the contents of the letter does not appear to be at issue. Plaintiffs do not establish what good cause there is for the remaining requested discovery, or what facts Plaintiffs seek to discover that would permit them to oppose the anti-SLAPP motion.

Moreover, even if Plaintiffs had established good cause, Plaintiffs have already had substantial opportunity to conduct discovery on this matter. This action has been ongoing for nearly three years. On August 28, 2025, Rose filed a motion to compel further discovery from Air Distribution as to its Requests for Production Set One, which included requests for all communications mentioning either Rose or Shisha Aroma between Air Distribution and any other person, as well as all communications sent from Air Distribution to any of Rose or Shisha Aroma's customers. On September 29, 2025, the court granted this motion. Air Distribution provided supplemental responses on October 29, 2025. (Higgins Decl. ¶ 4.)

Rose subsequently did not file a motion to compel further responses on Air Distribution's supplemental responses. (Higgins Decl. ¶ 4.) Notice of such a motion must be filed within 45 days of service of the verified discovery response or supplemental discovery response. (Code Civ. Proc., § 2031.310, subd. (c).) A party may not avoid this deadline by filing a second set of duplicative discovery responses and moving to compel on the second set. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1408-1409, citing *Professional Career Colleges, Magna Institute, Inc. v. Superior Court* (1989) 207 Cal.App.3d 490.) Therefore, Plaintiffs have already had a reasonable opportunity to conduct discovery on this matter and have, seemingly, failed to obtain the necessary discovery.

The court will therefore deny Plaintiffs' motion for leave to conduct discovery pursuant to Code of Civil Procedure § 425.16, subd. (g).

3.

Conclusion

Based on the foregoing, the court DENIES Plaintiffs' motion for leave to conduct discovery pursuant to Code of Civil Procedure § 425.16, subd. (g).

Plaintiffs are ordered to give notice.

IT IS SO ORDERED.

DATED: June 30, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court